

April 3, 2026
Dept. 9
Tentative Rulings

1.	22CV0979	CARTER, ET AL vs. PLACER VILLAGE APARTMENTS, ET AL
Judgment on the Pleadings		

In a motion for judgment on the pleadings directed at the original Complaint filed on April 8, 2025, this Defendant failed to comply with Local Rules of the El Dorado County Superior Court, Rule 7.10.05, which requires the movant to inform the noticed party of the Court's Tentative Ruling system. The Tentative Ruling on that motion, dated October 17, 2025, informed the Defendant that the motion did not comply with Local Rule 7.10.05, and that repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Defendant filed a new motion for judgment on the pleadings directed at the First Amended Complaint, and again failed to comply with Rule 7.10.05.

TENTATIVE RULING #1: PURSUANT TO LOCAL RULE 7.12.13, THE PLEADING IS STRICKEN, WITHOUT PREJUDICE, AS A SANCTION FOR A REPEATED VIOLATION OF LOCAL RULE 7.10.05.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.